

The Jammu and Kashmir Electricity Act, 1997 (1940 A.D.)

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State of Jammu-Kashmir - Act

The Jammu and Kashmir Electricity Act, 1997 (1940 A.D.)

JAMMU & KASHMIR

India

The Jammu and Kashmir Electricity Act, 1997 (1940 A.D.)

Act 14 of 1997

Published on 7 December 1940

Commenced on 7 December 1940

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The Jammu and Kashmir Electricity Act, 1997 (1940 A.D.)

Act

No. 14 of 1997

[Received the assent of His Highness the Maharaja Bahadur on 7th December, 1940/23rd Maghar, 1997, and published in the Government Gazette dated 16th Phagum, 1997.]

Whereas it is expedient to frame a law relating to the supply and use of electrical energy; it is hereby enacted as follows:

Part I ? Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Jammu and Kashmir Electricity Act, 1997.

(2)

It extends to the whole of Jammu and Kashmir State.

(3)

It shall come into force when after receiving the assent of his Highness the Maharaja Bahadur it is published in the Jammu and Kashmir Government Gazette.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context,

(a)

"aerial" means any electricity supply line which is placed above ground and in the open air";

(b)

"area of supply" means the area within which alone a licensee is for time being authorised by his licence to supply energy.

(c)

["consumer" means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes his legal heirs, successors in interest and any person whose premises are for the time being, connected for purpose of receiving electricity with the works of a licensee, the Government or such other person, as the case may be]

[Substituted by Act VI of 2005, Section 2. w.e.f 17-01-2005.]

;

(d)

"daily fine" means a fine for each day on which an offence is continued after conviction therefor;

(e)

"distributing main" means the portion of any main with which a service lines is or is intended to be immediately connected;

(f)

"electricity supply line" means a wire, conductor or other means used for conveying, transmitting or distributing energy together with any casing, coating, covering tube, pipe or insulator enclosing, surrounding or supporting the same or any part thereof or any apparatus connected therewith for the purpose of so conveying, transmitting or distributing such energy;

(g)

"energy" means electrical energy when generated, transmitted, supplied or used for any purpose except the transmission of a message;

(h)

"licensee" means any person licensed under Part II to supply energy;

(i)

"main means any electric supply-line through which energy is or intended to be supplied by a licensee to the public;

(j)

"prescribed" means prescribed by rules made under this Act;

(k)

"public lamps" means an electric-lamp used for the lighting of any street;

(l)

"service line" means any electricity supple-line through which energy is, or is intended to be supplied by a licensee.

(i)

to a single consumer either from a distributing main or immediately from the licensee's premises, or

(ii)

from a distributing main to a group of consumers on the premises or an adjoining premises supplied from the same point of the distributing main ;

(m)

"street" includes any way road lane, square, court, alley, passage or open space, whether a thoroughfare or not over

which the public have a right of way, and also the roadway and footway over any public bridge or cause way;

(n)

"works includes electricity supply-lines and any buildings, machinery or apparatus required to supply energy and to carry into effect the objects of a licence granted under Part II; and

(o)

"local authority" means a Municipal Committee, Town Area Committee. Notified Area Committee or other authority legally entitled to or entrusted by the Government with the control or management of Municipal or local fund.

Part II ? Supply of Energy

Licences

3.

Grant of licences.

(1)

The Government may on application made in the prescribed form and on payment of the prescribed fee, (if any), grant to any person a licence to supply energy in any specified area, and also to lay down or place electric supply-lines for the conveyance and transmission of energy,-

(a)

where the energy to be supplied is to be generated outside such area, from a generating station situated outside such area to the boundary of such area, or

(b)

where energy is to be conveyed or transmitted from any place in such area to any other place therein, across an intervening area not included therein, across such area.

(2)

In respect of every such licence and the grant thereof the following provisions shall have effect, namely:-

(a)

any person applying for a licence under this part shall publish a notice of his application in the prescribed manner and with the prescribed particulars and the licence shall not be granted

(i)

until, all objections received by the Government with reference thereto have been considered by it:

Provided that no objection shall be so considered unless is received before the expiration of three months from the date of the first publication of such notice as aforesaid ; and

(ii)

until, in the case of an application for a licence for an area including the whole or any part of any cantonment, fortress, arsenal, camp or of any building or place in the occupation of the Government for military purposes, the Government has ascertained that there is no objection to the grant of the licence on the part of the military authorities;

(b)

where an objection is received from any local authority concerned, the Government shall, if in its opinion the objection is in sufficient, record in writing and communicate to such local authority its reasons for such opinion ;

(c)

a licence under this Part. -

(i)

may prescribe such terms as to the limits within which, and the conditions under which, the supply of energy is to be compulsory or permissive, and as to the limits of price to be charged in respect of the supply of energy/and generally as to such matters as the Government may think fit; and

(ii)

save in cases in which under section 9 clause (b), the provisions of sections 5 and 6 or either of them have been declared not to apply, every such licence shall declare whether any generating station to be used in connection with the undertaking shall or shall not form part of the undertaking for the purpose of purchase under section 5, or section 6;

(d)

the grant of a licence under this part for any purpose shall not in any way hinder or restrict the grant of a licence to another person within the same area of supply for a like purpose;

(e)

the provisions contained in the Schedule shall be deemed to be incorporated with, and to form part of every licence granted under this Part, save in so far as they are expressly added to varied or excepted by the licence and shall, subject to any such conditions, variations or exception which the Government is hereby empowered to make, apply to the undertaking authorised by the licence :

Provided that, where a licence is granted in accordance with the provisions of Clause IX of the Schedule for the supply of energy to other licensees for distribution by them, in so far as such licence relates to such supply the provisions of clauses IV, V, VI, VII, VIII and XII of the Schedule shall not be deemed to be incorporated with the licence.

(3)

Where in its opinion the public interest so permits, the Government may on the application or with the consent of the licensee, and, after consulting the local authority (if any) concerned,-

(a)

revoke a licence as to the whole or any part of the area of supply upon such terms and conditions as it thinks fit, or

(b)

make such alterations or amendments in the terms and conditions of a licence, including the provisions specified in section 3, sub-section (2), clause (e) as it thinks fit.

4.

Revocation or amendment of licenses.

(1)

The Government may if in its opinion the public interest so requires, revoke a licence in any of the following cases, namely :-

(a)

where the licensee, in the opinion of the Government makes wilful and un-reasonable prolonged default in doing any thing required of him by or under this Act;

(b)

where the licensee breaks any of the terms, or conditions of his licence the break of which is expressly declared by such licence to render it liable to revocation.

(c)

where the licensee fails, within the period fixed in this behalf by his licence or any longer period which the Government may substitute there for by order under sub-section (3), clause (b), and before exercising any of the powers conferred on him thereby in relation to the execution of works,-

(i)

to show, to the satisfaction of the Government that he is in a position fully and efficiently to discharge the duties and obligation imposed on him by his licence ; or

(ii)

to make the deposit or furnish the security required by his licence ;

(d)

where the licensee is, in the opinion of the Government, unable by reason of his insolvency, fully and efficiently to discharge the duties and obligations imposed on him by his licence.

(2)

Where the Government might, under sub-section (1), revoke a licence it may, instead of revoking the licence, permit it to remain in force subject to such further terms and conditions as it thinks fit to impose and any further terms or conditions so imposed shall be binding upon, and be observed by, the licensee, and shall be of like force and effect as if they were conditioned in the licence.

(3)

Where in its opinion the public interest so permits, the Government may, on the application or with the consent of the licensee, and after consulting the local authority (if any) concerned,-

(a)

revoke a licence as to the whole or any part of the area of supply upon such terms and conditions as it thinks fit, or

(b)

make such alterations or amendments in the terms and conditions of a licence, including the provisions specified in section 3, sub-section (2), clause (e) as it thinks fit.

5.

Provisions where licence of licensee is revoked.

- Where the Government revokes, under section 4. sub-section (1), the licence of a licensee, the following provisions shall have effect, namely :-

(a)

the Government shall serve a notice of the revocation upon the licensee and where the whole of the area of supply is included in the area for which a single local authority is constituted, upon that local authority is constituted, upon that local authority also and shall in the notice fix a date on which the revocation shall take effect; and on and with effect from that date all the powers and liabilities of the licensee under this Act shall absolutely cease and determine;

(b)

Where a notice has been served on a local authority under clause (a), the local authority may, within 3 months after the service of the notice, and with the written consent of the Government, by notice in writing, require the licensee to sell, and thereupon the licensee shall sell, the undertaking to the local authority on payment of the value of all lands, buildings, works, materials and plant of the licensee suitable to and used by him for the purposes of the undertaking, other than a generating station declared by the licence not to form part of the undertaking for the purpose of purchase, such value to be, in case of difference or dispute, determined by arbitration ;

Provided that the value of such lands, buildings, works, materials and plant shall be deemed to be their fair market value at the time of purchase, due regard being had to the nature and condition for the time being of such lands, buildings, works, materials and plant, and to the state of repair thereof, and to the circumstance that they are in such position as to be ready for immediate working, and to the suitability of the same for the purposes of the undertaking, but without any addition in respect of compulsory purchase or of goodwill or of any profits which may be or might have been made from the undertaking, or of any similar considerations;

(c)

Where no purchase has been effected by the local authority under clause (b), and any other person is willing to purchase the undertaking, the Government may, if it thinks fit, with the consent of the licensee, or without the consent of the licensee in case the price is not less than that for which the local authority might have purchased the same, require the licensee to sell, and thereupon the licensee shall sell the undertaking to such other persons;

(d)

where no purchase has been effected under clause (b) or clause (c) within such time as the Government may consider reasonable or where the whole of the area of supply is not included in the area for which a single local authority is constituted, the Government shall have the option of purchasing the undertaking and, if the Government elects to purchase, the licensee shall sell the undertaking to the Government upon terms and conditions similar to those set forth in clause (b);

(e)

where a purchase has been effected under any of the preceding clauses,-

(i)

the undertaking shall vest in the purchasers, free from any debts, mortgages or similar obligations of the licensee or attaching to the undertaking:

Provided that any such debts, mortgages or similar obligations shall attach to the purchase money in substitution for the undertaking ; and

(ii)

the revocation for the licence shall extend only to the revocation of the rights, powers, authorities, duties and obligations of the licensee from whom the undertaking is purchased, and save as aforesaid the licence shall remain in full force and the purchaser shall be deemed to be the licensee ;

Provided that where the Government elects to purchase under clause (d), the licence shall, after purchase, in so far as the Government is concerned, cease to have any further operation ;

(f)

where no purchase has been effected under any of the foregoing clauses, the licensee shall have the option of disposing of all lands, buildings, works, materials and plant belonging to the undertaking in such manner as he may think fit:

Provided that, if the licensee does not exercise such option within a period of six months from the date on which the

same became exercisable, the Government may forthwith cause the works of the licensee, in, under, over, along or across any street to be removed and every such street to be reinstated, and recover the cost of such removal and reinstatement from the licensee;

(g)

if the licensee has been required to sell the undertaking and if the same has not been completed by the date fixed in the notice issued under clause (a), the purchaser may, with the previous sanction of the Government, work the undertaking pending this completion of the sale.

6.

Purchase of undertaking.

(1)

Where a licence has been granted to any person, the Government shall on the expiration of such period, not exceeding fifty years, and of every such subsequent period, not exceeding twenty years, as shall be specified in this behalf in the licence, have the option of purchasing the undertaking and if the Government elects to purchase, the licensee shall sell the undertaking to the Government on payment of the value of all lands, buildings, works, materials and plant of the licence suitable to, and used by him for the purposes of the undertaking, other than a generating station declared by the licence not to form part of the undertaking for the purpose of purchase, such value to be, in case of difference or dispute, determined by arbitration ;

Provided that the value of such lands, buildings, works, materials and plant shall be deemed to be their fair market value at the time of purchase, due regard being had to the nature and condition for the time being of such lands, buildings, works, materials and plant, and to the state of repair thereof and to the circumstance that they are in such a position as to be ready for immediate working, and to the suitability of the same for the purposes of the undertaking;

Provided also that there shall be added to such value as aforesaid such percentage, if any, not exceeding twenty per cent on that value as may be specified in the licence on account of compulsory purchase.

(2)

Where a purchase has been effected under sub-section (1),-

(a)

the undertaking shall vest in the purchasers free from any debts, mortgages or similar obligations of the licensee or attaching to the undertaking:

Provided that any such debts, mortgages or similar obligations shall attach to the purchase money in substitution for the undertaking ; and

(b)

the licence shall, after purchase, cease to have any further operation.

(3)

Not less than two years' notice in writing of any election to purchase under this section shall be served upon the licensee by the Government.

(4)

Notwithstanding anything herein-above contained, the Government may waive its option to purchase and enter into an agreement with the licensee for the working by him of the undertaking until the expiration of the next subsequent period referred to in sub-section (1), upon such terms and conditions as may be stated in the agreement.

6A.

[Government as licensee.

[Section 6-A inserted by Act XLVII of Svt. 2011.]

- Whenever the Government engages in the business of supplying electrical energy, whether after purchase of an undertaking or otherwise, it shall have all the powers of a licensee under this Act, subject to the same restrictions as those to which the powers of a licensee are subject.]

7.

Provisions where no purchase and licence revoked with consent of licensee.

- Where, on the expiration of any of the periods referred to in section 6, sub-section (1), the Government does not purchase the undertaking and the licence is, on the application or with the consent of the licensee, revoked, the licensee shall have the option of disposing of all lands, buildings, works, materials and plant belonging to the undertaking in such manner as he may think fit:

Provided that, if the licensee does not exercise such option within a period of six months, the Government may proceed to take action as provided in section 5, clause (f), proviso.

8.

Licensee not to purchase or associate himself with, other licensed undertakings or transfer his undertakings.

(1)

The licensee shall not, at any time without the previous consent in writing of the Government, acquire, by purchase or otherwise, the licence or the undertaking of, or associate himself so far as the business of supplying energy is concerned with, any person supplying, or intending to supply, energy under any other licensee, and, before applying for such consent, the licensee shall give not less than one month's notice of the application to every local authority, both in the licensee's area of the application to every local authority, both in the licensee's area of supply, and also in the area or district in which such other person supplies, or intends to supply energy.

(2)

The licensee shall not at any time assign his licensee or transfer his undertaking, or any part thereof, by sale, mortgage, lease, exchange or otherwise without the previous consent in writing of the Government.

(3)

Any agreement relating to any transaction of the nature described in sub-section (1) or sub-section (2), unless made with, or subject to, such consent as aforesaid, shall be void.

9.

General power for Government to vary terms of purchase.

- Notwithstanding anything in sections 5, 6 and 7, the Government may, in any licence to be granted under this Act,-

(a)

vary the terms and conditions upon which and the periods on the expiration of which, the licensee shall be bound to sell his undertaking ; or

(b)

direct that, subject to such conditions and restrictions (if any) as it may think fit to impose, the provisions of the said sections or any of them shall not apply.

10.

Annual accounts of licensee.

(1)

Every licensee shall, unless expressly exempted from the liability by his licence, or by order in writing of the Government, prepare and render to the Government or to such authority as the Government may appoint in this behalf, on or before the prescribed date in each year, an annual statement of accounts of his undertaking made up to such date, in such form and containing such particulars, as may be prescribed in this behalf.

(2)

The licensee shall keep copies of such annual statement at his office, and sell the same to any applicant at a price not exceeding Rs. 5 per copy.

Works

11.

Provisions as to the opening and breaking up of streets, railways and tramways.

- Any licensee may, from time to time but subject always to the terms and conditions of his licensee, within the area of supply, or when permitted by the terms of his licence to lay down or place electric supply-lines without the area of supply, without that area,-

(a)

open and break up the soil and payment of any street, railway or tramway ;

(b)

open and break up any sewer, drain or tunnel in or under any street, railway or tramway;

(c)

lay down and place electric supply-lines and other works;

(d)

repair, alter or remove the same ; and

(e)

do all other acts necessary for the due supply of energy.

(2)

Nothing contained in sub-section (1) shall be deemed to authorise or empower a licensee, without the consent of the local authority or of the owner and occupier concerned, as the case may be, to lay down or place any electric supply-line or other work in, through or against any building, or on, over or under any land not dedicated to public use, whereon, where-over or where-under any electric supply-line or work has not already been lawfully laid down or placed by such licensee :

Provided that any support of an aerial line or any stay or strut required for the sole purpose of securing in position any support of an aerial line may be fixed on any building or land or, having been so fixed may be altered, notwithstanding the objection of the owner or occupier of such building or land, if the District Magistrate by order in writing so directs :

Provided also that, if at any time the owner or occupier of any building or land on which any such support, stay or strut has been fixed shows sufficient cause, the District Magistrate may by order in writing direct any such support, stay strut to be removed or altered.

(3)

When making an order under sub-section (2), the District Magistrate shall fix the amount of compensation or of annual rent, or of both, which should in his opinion be paid by the licensee to the owner, or occupier.

(4)

Every order made a District Magistrate under sub-section (2) shall be subject to revision by the Government.

(5)

Nothing contained in sub-section (1) shall be deemed to authorise or empower any licensee to open or break up any street not repairable by the Government or any railway or tramway, except such streets, railways or tramways (if any), or such parts thereof, as he is specially authorised to break up by his licence, without the written consent of the person by whom the street is repairable or of the person for the time being entitled to work the railway, or tramway, unless with the written consent of the Government:

Provided that the Government shall not give any such consent as aforesaid, until the licensee has given notice by advertisement or otherwise as the Government may direct, and within such period as the Government may fix in this behalf, to the person above referred to, and until all representations or objections received in accordance with the notice have been considered by the Government.

12.

Notice of new works.

(1)

Where the exercise of any of the powers of a licensee in relation to the execution of any works involves the placing of any works in, under, over, along or across any street, part of a street, railway, tramway, canal or waterway, the following provisions shall have effect, namely :-

(a)

not less than one month before commencing the execution of the works (not being a service line immediately attached, or intended to be immediately attached to a distributing main, or the repair, renewal or amendment of existing works of which the character or position is not to be altered), the licensee shall serve upon the person responsible for the repair of the street or part of a street (hereinafter in this section referred to as "the repairing authority") or upon the person for the time being entitled to work the railway, tramway, canal or waterway (hereinafter in this section referred to as "the owner"), as the case may be, a notice in writing describing the proposed works, together with a section and plan thereof on a scale sufficiently large to show clearly the details of the proposed works, and not in any case smaller than one inch to 8 feet vertically and sixteen inches to the mile horizontally, and intimating the manner in which, and the time at which, it is proposed to interfere with or alter any existing works, and shall, upon being required to do so by the repairing authority or owner, as the case may be, from time to time give such further information in relation thereto as may be desired;

(b)

if the repairing authority intimates to the licensee that it disapproves of such works, section or plan, or approves thereof subject to amendment, the licensee may, within one week or receiving such intimation, appeal to the Government, whose decision, after considering the reasons given by the repairing authority for its action, shall be final;

(c)

if the repairing authority fails to give notice in writing of its approval or disapproval to the licensee within one month, it shall be deemed to have approved of the works, section and plan, and the licensee, after giving not less than forty-eight hours notice in writing to the repairing authority, may proceed to carry out the works in accordance with the notice and the section and plan served under clause (a);

(d)

if the owner disapproves of such works, section or plan or approves thereof subject to amendment, he may, within three weeks after the service of the notice under clause (a), serve a requisition upon the licensee demanding that any question in relation to the works or to compensation, or to the obligations of the owner to others in respect thereof, shall be determined by arbitration and thereupon the matter shall, unless settled by agreement, be determined by arbitration;

(e)

where no requisition has been served by the owner, upon the licensee under clause (d), within the time named, the owner shall be deemed to have approved of the work, section and plan, and in that case, or where after a requisition for arbitration the matter has been determined by arbitration, the works may, upon payment or securing of compensation, be executed according to the notice and the section and plan, subject to such modifications as may have been determined by arbitration or agreed upon between the parties;

(f)

where the works to be executed consist of the laying of any underground service-line immediately attached, or intended to be immediately attached, to a distributing main, the licensee shall give to the repairing authority or the owner, as the case may be, not less than forty-eight hours notice in writing of his intention to execute such works.

(g)

where the Works to be executed consist of the repair, renewal or amendment of existing works of which the character or position is not to be altered, the licensee shall, except in case of emergency, give to the repairing authority, or to the owner, as the case may be, not less than forty-eight hours, notice in writing of his intention to execute such work, and, on the expiry of such notice, such works shall be commenced forthwith and shall be carried on with all reasonable despatch and, if possible, both by day and by night until completed.

(2)

Where the licensee makes default in complying with any of these provisions, he shall make full compensation for any loss or damage incurred by reason thereof, and where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration.

(3)

Notwithstanding anything in this section, the licensee may, in case of emergency due to the breakdown of an underground electric supply-line, after giving notice in writing to the Repairing authority or the owner, as the case may be, of his intention to do so, place an aerial line without complying with the provisions of sub-section (1) :

Provided that such aerial line shall be used only until the defect in the underground electric supply-line can be made good, and in no case (unless with the written consent of the Government) for a period exceeding six weeks, and shall be removed as soon as may be after such defect is removed.

13.

Alteration of pipes or wires.

(1)

Any licensee may alter the position of any pipe (not forming part of a local authority's main sewer) or of any wire under or over any place which he is authorised to open or break up, if such pipe or wire is likely to interfere with the exercise of his powers under this Act; and any person may alter the position of any electric supply-line or works of a licensee under or over any such place as aforesaid, if such electric supply-lines or works are likely to interfere with the lawful exercise of any powers vested in him.

(2)

In any such case as aforesaid the following provision shall in the absence of an agreement to the contrary between the parties concerned, apply, namely:-

(a)

not less than one month before commencing by alteration, the licensee or other person desiring to make the same (hereinafter in this section referred to as "the operator") shall serve upon the person for the time being entitled to the pipe, wire, electric supply-lines, or works, as the case may be, (hereinafter in this section referred to as "the owner"), a

notice in writing describing the proposed alteration, together with a section and plan thereof on a scale sufficiently large to show clearly the details of the proposed works and not in any case smaller than one inch to eight feet vertically and sixteen inches to the mile horizontally, and intimating the time when it is to be commenced, and shall subsequently give such further information in relation thereto as the owner may desired ;

(b)

within fourteen days after the service of the notice, section and plan upon the owner, the owner may serve upon the operator a requisition to the effect that any question arising upon the notice, section or plan shall be determined by arbitration, and thereupon the matter shall, unless settled by agreement, be determined by arbitration;

(c)

every arbitrator to whom a reference is made under clause (b) shall have regard to any duties or obligations which the owner is under, and may require the operator to execute any temporary or other works so as to avoid, as far as possible, interference therewith;

(d)

where no requisition is served upon the operator under clause (b) within the time named, or where such a requisition has been served and the matter has been settled by agreement or determined by arbitration, the alteration may, upon payment or securing of any compensation accepted or determined by arbitration, be executed in accordance with the notice, section and plan and subject to such modifications as may have been determined by arbitration or agreed upon between the parties;

(e)

the owner may, at any time before the operator is entitled to commence the alteration, serve upon the operator a statement in writing to the effect that he desires to execute the alteration himself and requires the operator to give such security for the payment of any expenses as may be agreed upon or in default of agreement, determined by arbitration;

(f)

where a statement is served upon the operator under clause (e), he shall, not less than forty-eight hours before the execution of the alteration is required to be commenced, furnish such security and serve upon the owner a notice in writing intimating the time when the alteration is required to be commenced, and the manner in which it is required to be made; and thereupon the owner may proceed to execute the alteration as required by the operator;

(g)

where the owner declines to comply, or does not, within the time and in the manner prescribed by a notice served upon him under clause (f), comply with the notice, the operator may himself execute the alteration;

(h)

all expenses properly incurred by the owner in complying with a notice, served upon him by the operator under clause (f), may be recovered by him from the operator.

(3)

Where the licensee or other person desiring to make the alteration makes default in complying with any of these provisions, he shall make full compensation for any loss or damage incurred by reasons thereof and, where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration.

14.

Laying of electric supply-lines or other works near sewers, pipes or other electric supply-lines or works.

(1)

Where,-

(a)

the licensee requires to dig or sink any trench for laying down any new electric supply-lines or other works, near to which any sewer, drain, water-course or work under the control of the Government or of any local authority or any pipe, syphon, electric supply-line or other work belonging to any duly authorised person, has been lawfully placed; or

(b)

any duly authorised person requires to dig or sink any trench for laying down or constructing any new pipes or any other works, near to which any electric supply-line or works of a licensee have been lawfully placed, the licensee or such duly authorised person, as the case may be, (hereinafter in this section referred to as "the operator"), shall, unless it is otherwise agreed upon between the parties interested or in case of sudden emergency, give to the Government or to such duly authorised person or to the licensee, as the case may be (hereinafter in this section referred to as "the owner")

not less than forty-eight hours notice in writing before commencing to dig or sink the trench, and the owner shall have the right to be present during the execution of the work, which shall be executed to the reasonable satisfaction of the owner.

(2)

Where the operator finds it necessary to undermine, but not to alter, the position of any pipe, electric supply-line or work, he shall support it in position during the execution of the work, and before completion shall provide a suitable and proper foundation for it where so undermined.

(3)

Where the operator (being the licensee) lays any electric supply-line across or so as to be liable to touch, any pipes, lines or service-pipes or service-lines belonging to any duly authorised person or to any person supplying, transmitting or using energy under the Act, he shall not, except with the written consent of such person and in accordance with section 34, sub-section (1), lay his electric supply-lines so as to come into contact with any such pipes, lines or service-pipes or service lines.

(4)

Where the operator makes default in complying with any of the provisions of this section, he shall make full compensation for any loss or damage incurred by reason thereof.

(5)

Where any difference or dispute arises under this section, the matter shall be determined by arbitration.

15.

Streets, railways, tramways, sewers, drains or tunnels broken up to reinstated without delay.

(1)

Where any person, in exercise of any of the powers conferred by or under this Act, opens or breaks up the soil or payment of any street, railway or tramway or any sewer, drain or tunnel, he shall,

(a)

immediately cause the part opened or broken up to be fenced and guarded;

(b)

before sunset cause a light or lights, sufficient for the warning of passengers, to be set up and maintained until sunrise against or near the part opened or broken up;

(c)

with all reasonable speed fill in the ground and reinstate and make good the soil or pavement; or the severe, drain or tunnel, opened or broken up, and carry away the rubbish occasioned by such opening or breaking up ; and

(d)

after reinstating and making good the soil or pavement, or the sewer, drain or tunnel, broken or opened up, keep the same in good repair for three months and for any further period, not exceeding nine months, during which subsidence continues.

(2)

Where any person fails to comply with any of the provisions of sub-section (1), the person having the control or management of the street, railway, tramway, sewer, drain or tunnel in respect of which the default has occurred, may cause to be executed the work which the defaulter has delayed or omitted to execute, and may recover from him the expenses incurred in such execution.

(3)

Where any difference or dispute arises as to the amount of the expenses incurred under sub-section (2), the matter shall be determined by arbitration.

16.

Notice to telegraph authority.

(1)

A licensee shall, before laying down or placing, within ten yards of any part of any telegraph-line, any electric supply-line or other works (not being either service-lines or electric supply-lines for the repair, renewal or amendment of existing works of which the character or position is not to be altered), give not less than ten days' notice in writing to the telegraph authority specifying,-

(a)

the course of the works or alterations proposed;

(b)

the manner in which the works are to be utilized;

(c)

the amount and nature of the energy to be transmitted; and

(d)

the extent to, and manner which in, (if at all) earth returns are to be used;

and the licensee shall conform with such reasonable requirements, either general or special, as may be laid down by the telegraph authority within that period for preventing any telegraph-line from being injuriously affected by such works or alteration :

Provided that, in case of emergency (which shall be stated by the licensee in writing to the telegraph authority arising from defects in any of the electric supply-lines or other works of the licensee, the licensee shall be required to give only such notice as may be possible after the necessity for the proposed new works or alterations has arisen.

(2)

Where the works to be executed consist of the laying or placing of any service-line, the licensee shall, not less than forty-eight hours before commencing the works, serve upon the telegraph authority a notice in writing of his intention to execute such works.

17.

Aerial lines.

(1)

Save as provided in section 12, sub-section (3), nothing in the Part shall be deemed to authorise or empower a licensee to place any aerial line along or across any street, railway, tramway, canal or waterway unless and until the Government has communicated to him a general approval in writing of the methods of construction which he proposes to adopt:

Provided that the communication of such approval shall in no way relieve the licensee of his obligations with respect to any other consent required by or under this Act.

(2)

Where any aerial line has been placed or maintained by a licensee in breach of the provisions of sub-section (1), the Government may require the licensee forthwith to remove the same, or may cause the same to be removed, and recover from the licensee the expenses incurred in such removal.

(3)

Where any tree standing or lying near an aerial line, or where any structure or other object which has been placed or has fallen near an aerial line subsequently to the placing of such line, interrupts or interferes with, or is likely to interrupt or interfere with, the conveyance or transmission of energy, or the accessibility of any work, a Magistrate of the first class may, on the application of the licensee, and after affording such opportunity for objections as may be brought forward, cause the tree, structure or object to be removed or otherwise dealt with as he thinks fit.

(4)

When disposing of an application under sub-section (3), the Magistrate shall, in the case of any tree in existence before the placing of the aerial line, award to the person interested in the tree such compensation as he thinks reasonable, and such person may recover the same from the licensee.

Explanation : - For the purposes of this section, the expression "tree" shall be deemed to include any shrub, hedge, jungle-growth or other plant.

18.

Compensation for damage.

(1)

A licensee shall, in exercise of any of the powers conferred by or under this Act, cause as little damage, detriment and inconvenience as may be, and shall make full compensation for any damage, detriment or inconvenience caused by him or by any one employed by him.

(2)

Save in the case provided for in section 11, sub-section (3), where any difference or dispute arises as to the amount or the application of such compensation, the matter shall be determined by arbitration.

Supply

19.

Point where supply is delivered.

- For the purposes of this Act, the point at which the supply of energy by a licensee to a consumer shall be deemed to commence shall be determined in such manner as may be prescribed.

20.

[Licensee to enter premises and to remove fittings or other apparatus of licensee.

[Substituted by Act VI of 2005 (Section 3) w.e.f. 17-01-2005.]

(1)

A licensee or any officer not below the rank of Executive Engineer of the Electric Department may at any reasonable time, and on informing the occupier of his intention, enter any premises to which electricity is, or has been, supplied by him, or any premises or, land, under, over, along, across, in or upon which the electric supply-lines or other works have been lawfully placed by him for the purpose of, -

(a)

inspecting, testing, repairing or altering the electric supply-lines, meters, fittings, works and apparatus for the supply of electricity belonging to the licensee;

(b)

ascertaining the amount of electricity supplied or the electrical quantity contained in the supply; or

(c)

removing, where a supply of electricity is no longer required, or where the licensee is authorised to take away and cut off such supply, electric supply-lines, meters, fittings, works or apparatus belonging to the licensee.

(2)

A licensee or any officer not below the rank of Executive Engineer of the Electric Department, may also,-

(a)

enter any premises or land referred to in sub-section (1) for any of the purposes mentioned therein ; or

(b)

enter any premises to which electricity is to be supplied by him for the purpose of examining and testing the electric wires, fittings, works and apparatus for the use of electricity belonging to the consumer.

(3)

For purposes of sub-section (1) and sub-section (2), the Government may invest the licensee or any officer not below the rank of Executive Engineer of the Electric Department with the powers of an Executive Magistrate.

(4)

Where a consumer refuses to allow a licensee or any person authorised as aforesaid to enter the premises in pursuance of sub-section (1) or sub-section (2) or when such licensee or person has so entered, refuses to allow him to perform any act, which he is authorized to perform or fails to give reasonable facilities for such entry or performance, the licensee or the officer authorized may cut off supply to the consumer, for as long as such refusal or failure continues, but for no longer.]

21.

Restriction on licensees controlling or interfering with use of energy.

(1)

A licensee shall not be entitled to prescribe any special form of appliance for utilizing energy supplied by him, or, save as provided by section 23, sub-section (2), or by section 26, sub-section (7), in any way to control or interfere with the use of such energy :

Provided that no person may adopt any form of appliance, or use the energy supplied to him so as unduly or improperly to interfere with the supply by the licensee of energy to any other person.

(2)

Subject to the provisions of sub-section (1), a licensee may, with the previous sanction of the Government given after consulting the local authority, make conditions not inconsistent with this Act or with his licence or with any rules made under this Act, to regulate his relations with persons who are or intend to become consumers, and may, with the like sanction given after the like consultation, add to or alter or amend any such conditions, and any conditions made by a licensee without such sanction shall be null and void.

(3)

The Government may, after the like consultation, cancel any condition or part of a condition previously sanctioned under

sub-section (2) after giving to the licensee not less than one month's notice in writing of its intention to do so.

(4)

Where any difference or dispute arises as to whether a licensee has prescribed any appliance or controlled or interfered with the use of energy in contravention of sub-section (1), the matter shall be either referred to an Electric Inspector and decided by him or, if the licensee or consumer so desires, determined by arbitration.

22.

Obligation on licensee to supply energy.

- Where energy is supplied by a licensee, every person within the area of supply shall, except in so far as is otherwise provided by the terms and conditions of the licence, be entitled, on application, to a supply on the same terms as those on which any other person in the same area is entitled in similar circumstances to a corresponding supply;

Provided that no person shall be entitled to demand, or to continue to receive, from a licensee a supply of energy for any premises having a separate supply unless he has agreed with the licensee to pay to him such minimum annual sum as will give him a reasonable return on the capital expenditure, and will cover other standing charges incurred by him in order to meet the possible maximum demand for those premises, the sum payable to be determined in case of difference of dispute by arbitration.

23.

Charges for energy to be made without undue preference.

(1)

A licensee shall not, in making any agreement for the supply of energy, show undue preference to any person, but may, save as aforesaid, make such charges for the supply of energy as may be agreed upon, not exceeding the limits imposed by his licence.

(2)

No consumer shall, except with the consent in writing of the licensee, use energy supplied to him under one method of charging in a manner for which a higher method of charging is in force.

(3)

In the absence of an agreement to the contrary, a licensee may charge for energy supplied by him to any consumer,-

(a)

by the actual amount of energy so supplied; or

(b)

by the electrical quantity contained in the supply;

(c)

by such other method as may be approved by the Government.

(4)

Any charges made by a licensee under clause (c) of sub-section (3) may be based upon, and vary in accordance with any one or more of the following considerations, namely

(a)

the consumer's load factor; or

(b)

the power factor of his load; or

(c)

his total consumption of energy during any stated period; or

(d)

the hours at which the supply of energy is required.

24.

Discontinuance of supply to consumer neglecting to pay charges.

(1)

Where any person neglects to pay any charge for energy or any sum, other than a charge for energy, due from him to a licensee in respect of the supply of energy to him, the licensee may, after giving not less than seven clear days notice in writing to such person and without prejudice to his right to recover such charge or other sum by suit, cut off the supply and for that purpose cut or disconnect any electric supply-line or other works, being the property of the licensee, through which energy may be supplied, and may discontinue the supply until such charge or other sum, together with any

expenses incurred by him in cutting off and reconnecting the supply, are paid, but no longer.

(2)

Where any difference or dispute has been referred under this Act to an Electric Inspector before notice as aforesaid has been given by the licensee, the licensee shall not exercise the powers conferred by this section until the Inspector has given his decision:

Provided that the prohibition contained in this sub-section shall not apply in any case in which the licensee has made a request in writing to the consumer for a deposit with the Electric Inspector of the amount of the licensee's charges or other sums in dispute or for the deposit of the licensee's further charges for energy as they accrue, and the consumer has failed to comply with such request.

24A.

[Power of District Magistrate to order discontinuance of the supply of electric energy.

[Section 24-A inserted by Act XVI of 1967.]

- If the District Magistrate is of the opinion that for purposes of carrying into effect the provisions of the Essential Supplies (Temporary Powers) Ordinance, 2003, or any order, rule or notification made thereunder, it is necessary so to do, he may, notwithstanding anything contained in this Act or any other law for the time being in force, or any agreement for the supply of electric energy, by order in writing, direct the licensee to discontinue for such period as may be specified in the order, the supply of electric energy to any owner of a mill licensed to carry on the business of milling rice or flour under the Jammu and Kashmir Rice and Flour Mills (Licensing and Control) Order, 1958 within his jurisdiction and the licensee shall thereupon discontinue the supply of electric energy to such owner for the period specified in the order.]

25.

Exemption of electric supply-lines or other apparatus from attachment in certain cases.

- Where any electric supply-lines, meters, fittings, works or apparatus belonging to a licensee are placed in or upon any premises, not being in the possession of the licensee, for the purpose of supplying energy, such electric supply-lines, meters, fittings, works and apparatus shall not be liable to be taken in execution under any process of any Civil Court or in any proceedings in insolvency against the person in whose possession the same may be.

26.

Meters.

(1)

In the absence of an agreement to the contrary, the amount of energy supplied to a consumer or the electrical quantity contained in the supply shall be ascertained by means of a correct meter, and the licensee shall, if required by the consumer, cause the consumer to be supplied with such a meter:

Provided that the licensee may require the consumer to give him security for the price of a meter and enter into an agreement for the hire thereof, unless the consumer elects to purchase a meter.

(2)

Where the consumer so enters into an agreement for the hire of a meter, the licensee shall keep the meter correct, and, in default of his doing so, the consumer shall for so long as the default continues, cease to be liable to pay for the hire of the meter.

(3)

Where the meter is property of the consumer, he shall keep the meter correct, and, in default of his doing so, the licensee may, after giving him seven days notice, for so long as the default continues, cease to supply energy through the meter.

(4)

The licensee or any person duly authorised by the licensee shall, at any reasonable time and on informing the consumer of his intention, have access to and be at liberty to inspect and test, and for that purpose, if he thinks fit, take off and remove, any meter referred to in sub-section (1); and, except where the meter is so hired as aforesaid, all reasonable expenses of, and incidental to, such inspecting, testing, taking off and removing shall, if the meter is found to be otherwise than correct, be recovered from the consumer; and, where any difference or dispute arises as to the amount of such reasonable expenses, the matter shall be referred to the Electric Inspector and his decision shall be final;

Provided that the licensee shall not be at liberty to take off or remove any such meter, if any, difference or dispute of the nature described in sub-section (6) has arisen until the matter has been determined as therein provided.

(5)

A consumer shall not connect any meter referred to in sub-section (1) with any electric supply-line through which energy is supplied by a licensee, or disconnect the same from any such electric supply-line, without giving to the licensee not less than forty-eight hours, notice in writing of his intention.

(6)

Where any difference or dispute arises as to whether any meter referred to in sub-section (1) is or is not correct, the matter shall be decided, upon the application of either party, by the Electric Inspector, or by a competent person specially appointed by the Government in this behalf; and, where the meter has, in the opinion of such Inspector or person, ceased to be correct, such Inspector or person shall estimate the amount of the energy supplied to the consumer or the electrical quantity contained in the supply, during such time as the meter shall not, in the opinion of such Inspector or person, have been correct; and where the matter has been decided by any person other than the Electric inspector, an appeal shall lie to the Inspector whose decision shall in every case be final; but, save as aforesaid, the register of the meter shall, in the absence of fraud, be conclusive proof of such amount or quantity:

Provided that, before a licensee or a consumer applies to the Electric Inspector under this sub-section, he shall give to the other party not less than seven days notice of his intention so to do.

(7)

In addition to any meter which may be placed upon the premises of a consumer in pursuance of the provisions of sub-section (1), the licensee may place upon such premises such meter, maximum demand indicator or other apparatus as he may think fit for the purpose of ascertaining or regulating either the amount of energy supplied to the consumers, or the number of hours during which the supply is given or the rate per unit of time at which energy is supplied to the consumer, or any other quantity or time connected with the supply :

Provided that the meter, indicator or apparatus shall not, in the absence of an agreement to the contrary, be placed otherwise than between the distributing mains of the Licensee and any meter referred to in sub-section (1):

Provided also that, where the charges for the supply of energy depend wholly or partly upon the reading or indication of any such meter, indicator or apparatus as aforesaid, the licensee shall, in the absence of an agreement to the contrary, keep the meter, indicator or apparatus correct; and the provisions of sub-sections (4), (5) and (6) shall in that case apply as though the meter, indicator or apparatus were a meter referred to in sub-section (1).

Explanation: A meter shall be deemed to be "correct" if it registers the amount of energy supplied, or the electrical quantity contained in the supply, within the prescribed limits of error, and a maximum demand indicator or other apparatus referred to in sub-section (7) shall be deemed to be "correct" if it complies with such conditions as may be prescribed in the case of any such indicator or other apparatus.

27.

Supply of energy outside area of supply.

- Notwithstanding anything in this Act, the Government may, by order in writing, and subject to such conditions and restrictions, if any, as it thinks fit to impose, authorise any licensee to supply energy to any person outside the area of supply, and to lay down or place electric supply-lines for that purpose :

Provided, first, that no such authority shall be conferred on the licensee within the area of supply of another licensee without that licensee's consent unless the Government considers that his consent has been unreasonably withheld:

Provided, secondly, that such authority shall not be conferred unless the person to whom the supply is to be given has entered into a specific agreement with the licensee for the taking of such supply :

Provided, thirdly, that a licensee on whom such authority has been conferred shall not be deemed to be empowered outside the area of supply to open or break up any street, or any sewer, drain or tunnel in or under any street, railway or tramway, or to interfere with any telegraph-line, without the written consent of the local authority or person by whom such street, sewer, drain or tunnel is repairable, or of the telegraph authority, as the case may be, unless the Government, after such enquiry as it thinks fit, considers that such consent has been unreasonably withheld :

Provided fourthly, that save as aforesaid, the provisions of this Act, shall apply in the case of any supply authorised under the section as if the said supply were made within the area of supply.

Part III ? Supply, Transmission and use of Energy by Non-Licensees

28.

Sanction required by non-licensee in certain cases.

- No person other than a licensee, shall engage in the business of supplying energy except with the previous sanction of

the Government and in accordance with such conditions as the Government may fix in this behalf, and any agreement to the contrary shall be void :

Provided that such sanction not be given within the area of supply of any licensee, without that licensee's consent, unless the Government considers that consent has been unreasonably withheld.

29.

Application of section 17 to aerial maintained by railways.

- The provisions of sub-sections (3) and (4) of section 17 and of the Explanation thereto shall apply in the case of any aerial line placed by any railway administration as defined in section 3 of the Indian Railways Act, 1890, as if the reference therein to the licensee were reference to the railway administration.

30.

Control transmission and use of energy.

(1)

No person, other than a licence duly authorised under the terms of his licence, shall transmit or use energy at a rate exceeding two hundred and fifty watts,-

(a)

in any street, factory or mine, or

(b)

in any Place-

(i)

in which one hundred or more persons are likely ordinarily to be assembled, or

(ii)

to which the Government, by general or special order, declares the provisions of sub-section to apply, with giving not less than seven clear days notice in writing of his intention to the District Magistrate and complying with such of the provisions of Part IV, and of the rules made thereunder, as may be applicable;

Provided that nothing in this section shall apply to energy used for the public carriage of passengers, animals or goods on, or for the lighting or ventilation of the rolling stock of any railway or tramway subject to the provisions of the Indian Railways Act, 1890

Provided also that the Government may, by general or special order and subject to such conditions and restrictions as may be specified therein , exempt from the application of this section or of any such provisions or rule as aforesaid any person or class of persons using energy on premises upon or in connection with which it is generated, or using energy supplied under Part II in any place specified in clause (b)

(2)

Where any difference or dispute arises as to whether a place is or is not one in which one hundred or more persons are likely ordinarily to be assembled, the matter shall be referred to the Government, and the decision of the Government thereon shall be final.

Part IV ? General

Protective clauses

31.

Protection of railways and canals, docks, wharves and piers.

- No person shall, in the generation, transmission, supply or use of energy, if any, injure any railway/tramway/ canal, or any dock, wharve or pier vested in or controlled by a local authority, or obstruct or interfere with the traffic on any railway, tramway, canal or waterway.

32.

Protection of telegraphic, telephonic and electric signalling lines.

(1)

Every person generating, transmitting, supplying or using energy (hereinafter in this section referred to the "operator") shall take all reasonable precautions in constructing laying down and placing his electric supply-lines and other works and in working his system, so as not injuriously to effect, whether by induction or otherwise, the working of any wire or line used for the purpose of telegraphic, telephonic or electric-signalling communication, or the currents in such wire or line.

(2)

Where any difference or dispute arise between the operator and the telegraph authority as to whether the operator has constructed, laid down or placed his electric supply-lines or other works, or worked his system, in contravention of sub-section (1), or as to whether the working of any wire, line or current is or is not injuriously affected thereby, the matter shall be referred to the Government; and the government, unless it is of opinion that the wire or line has been placed in unreasonable proximity to the electric supply-lines or works of the operator after the construction of such lines or works, may direct the operator to make such alterations in, or additions to, his system as may be necessary in order to comply with the provisions of this section, and the operator shall make such alterations in or additions accordingly:

Provided that nothing in this sub-section shall apply to the repair, renewal or amendment of any electric supply-line so long as the course of the electric supply-line and the amount and nature of the energy transmitted thereby are not altered.

(3)

Where the operator makes default in complying with the requirements of this section, he shall make full compensation for any loss or damage incurred by reason thereof, and, where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration.

Explanation. - For the purpose of this section, a telegraph line shall be deemed to be injuriously affected if telegraphic, telephonic or electric signalling communication by means of such line is, whether through induction or otherwise, prejudicially interfered with by an electric supply-line or work or by any use made thereof.

33.

Notice of accidents and injuries.

- [(1) if any accident occurs in connection with the generation, transmission, supply or use of energy in or connection with any part of the electric supply-lines or other works of any person and the accident results or is likely to have resulted in loss of human or animal life or in any injury to a human being or an animal such person shall give notice of the occurrence and of any such loss or injury actually caused by the accident in such form and within such time as may be prescribed, to the Electric Inspector and to such authorities as the Government may by general or special order, direct.]

[Substituted by Act XXVIII of 1978, Section 2.]

(2)

The Government may, if it thinks fit, require any Electric inspector, or any other competent person appointed by it in this behalf, to inquire and report,-

(a)

as to the cause of any accident affecting the safety of the public, which may have been occasioned by, or in connection with the generation, transmission, supply or use of energy, or

(b)

as to the manner in, and extent to, which the provisions of this Act or of any licence or rules thereunder, so far as those provisions effect the safety of any person, have been complied with.

(3)

[Every Electric Inspector or other person holding an enquiry under sub-section (2) shall have all the powers of a Civil Court under the Code of Civil Procedure, Samvat 1977, for the purpose of enforcing the attendance of witnesses and compelling the production of documents and material objects ; and every person required by the Electric Inspector or by such other person as aforesaid to furnish any information shall be deemed to be legally bound to do so within the meaning of section 176 of the Ranbir Penal Code, Samvat 1989.

Explanation. - For purpose of this section an Electric Inspector shall be a person not below the rank of an Executive Engineer.]

[Inserted by Act XXVIII of 1978, Section 2.]

34.

Prohibition of connection with earth and power for Government to interfere in certain cases of default.

(1)

no person shall, in the generation, transmission, supply or use of energy, permit any part of his electric supply lines to be connected with earth except so far as may be prescribed in this behalf or may be specially sanctioned by the Government.

(2)

If at any time it is established to the satisfaction of the Government,-

- (a)
that any part of an electric supply-line is connected with earth contrary to the provisions of sub-section (1), or
- (b)
that any electric supply-lines or other works for the generation, transmission, supply or use of energy are attended with danger to the public safety or to human life or injuriously effect any telegraph line, or
- (c)
that any electric supply-lines or other works are defective so as not to be in accordance with the provisions of this Act or of any rule thereunder, the Government may, by order in writing, specify the matter complained of and require the owner or user of such electric supply-lines or other works to remedy it in such manner as shall be specified in the order, and may also in like manner forbid the use of any electric supply-line or works until the order is complied with or for such time as is specified in the order.

Administration and Rules

35.

Appointment of Electric Inspectors.

- (1)
The Government may by notification in the gazette, appoint duly qualified person to be Electric Inspectors and every Electric Inspector so appointed shall exercise the powers and perform the functions of an Electric Inspector under this Act within such areas and subject to such restrictions as the Government may direct.
- (2)
In the absence of express provision to the contrary in this Act or any rule thereunder, an appeal shall lie from the decision of an Electric Inspector to the Government.

36.

Power of Government to make rules.

- The Government may make rules for the whole or any part of the Jammu and Kashmir State to regulate the generation, transmission, supply and use of energy, and generally, to carry out the purposes and objects of this Act.
- (2)
In particular and without prejudice to the generality of the foregoing power, such rules may,
 - (a)
prescribe the form or applications for licenses and the payments to be made in respect thereof;
 - (b)
regulate the publication of notices;
 - (c)
prescribe the manner in which objections with reference to any application under Part II are to be made;
 - (d)
provide for the preparation and submission of accounts by licensees in a specified form;
 - (e)
provide for the securing of a regular, constant and sufficient supply of energy by licensees to consumers and for the testing at various parts of the system of the regularity and sufficiency of such supply, and for the examination of the records of such tests by consumers ;
 - (f)
provide for the protection of persons and property from injury by reason of contact with, or the proximity of, or by reason of the defective or dangerous condition of, any appliance or apparatus used in the generation, transmission, supply or use of energy;
 - (g)
for the purposes of electric traction regulate the employment of insulated returns, or of uninsulated metallic returns of low resistance, in order to prevent fusion or injurious electrolytic action of or on metallic pipes, structures or substances, and to minimise, as far as is reasonably practicable, injurious interference with the electric wires, supply-lines and apparatus of parties other than the owners of the electric traction system, or with the currents therein, whether the earth is used as a return or not;
 - (h)

provide for preventing telegraph-lines and magnetic observatories, or laboratories from being injurious affected by the generation, transmission, supply or use of energy;

(i)

prescribe the qualifications to be required of Electric Inspector;

(j)

authorise an Electric Inspector or other officer of a specified rank and class to enter, inspect and examine and place, carriage of vessel in which he has reason to believe any appliance or apparatus used in the generation, transmission, supply or use of energy to be, and to carry out tests therein, and to prescribe the facilities to be given to such Inspectors or Officers for the purposes of such examinations and tests;

(k)

authorise and regulate the levy of fees for any such testing or inspection and, generally, for the services of Electric Inspectors under this Act, and

(l)

provide for any matter which is to be, or may be, prescribed.

(3)

In making any rule under this Act, the Government may direct that every breach thereof shall be punishable with fine which may extend to three hundred rupees, and, in the case of a continuing breach, with a further daily fine which may extend to fifty rupees.

37.

Further provisions respecting rules.

- All rules made under section 36 shall be published in the Government Gazette and on such publication shall have effect as if enacted in this Act.

38.

[Theft of energy.

[Substituted and Inserted by Act VI of 2005, Section 4, w.e.f. 17-1-2005.]

(1)

Whoever, dishonestly, -

(a)

taps, makes or causes to be made any connection with overhead, underground or underwater lines or cables, or service wires, or service facilities of a licensee;

(b)

tampers a meter, installs or uses a tampered meter, current reversing transformer, loop connection or any other device or method which interferes with accurate or proper registration, calibration or metering of electric current or otherwise results, in a manner whereby electricity is stolen; or

(c)

damages or destroys an electric meter, apparatus, or wire or causes or allows any of them to be so damaged or destroyed as to interfere with the proper or accurate metering of electricity so as to abstract or consume or use electricity, shall be punishable with imprisonment for a term which extends to three years or with fine or with both:

Provided that in a case where the load abstracted, consumed, or used or attempted abstraction or attempted consumption or attempted use-

(i)

does not exceed one kilowatt, the fine imposed on first conviction shall be flat rate charges of three months of connected load on account of such theft of electricity and in the event of second or subsequent conviction the fine imposed shall be flat rate charges of six months connected load on account of such theft of electricity.

(ii)

exceed 1 (one) kilowatt the fine imposed on first conviction shall be flat rate charge of three months connected load on account of such theft of electricity and in event of second or subsequent conviction, the sentence shall be imprisonment for a term not less than six months but which extends to three years and with fine of flat rate charges of six months connected load on account of such theft of electricity:

Provided further if it is proved that any artificial means or means not authorised by the licensee, exist for the abstraction, consumption or use of electricity by the consumer, it shall be presumed, until the contrary is proved, that such

abstraction, consumption or use of electricity has been dishonesty caused by such consumer:

Provided also that the penalty of fine shall not bar the punishment of imprisonment as provided hereinbefore.

(2)

Any officer authorised in this behalf by the Government may,-

(a)

enter, inspect, break open and search any place or premises in which he has reason to believe that electricity has been, is being, or is likely to be, used un-authorisedly;

(b)

search, seize and remove all such devices, instruments, wires and any other facilitator or article which has been , is being, or is likely to be, used for unauthorized use of electricity;

(c)

examine or seize any books of account or documents which in his opinion shall be useful for, or relevant to, any proceedings in respect of the offence under sub-section (1) and allow the person from whose custody such books of account or documents are seized to make copies thereof or take extracts therefrom in his presence.

(3)

The occupant of the place of search or any person on his behalf shall remain present during the search and a list of all things seized in the course of such search shall be prepared and delivered to such occupant or person who shall sign the list:

Provided that no inspection, search and seizure of any domestic places or domestic premises shall be carried out between sunset and sunrise except in the presence of an adult male member occupying such premises or otherwise lawfully present in such premises.

(4)

For purposes of the aforesaid provisions, the authorised officer or any other officer may be conferred with the powers of an Executive Magistrate by the Government by notification in the Government Gazette.

(5)

Unless otherwise provided in this Act, the provisions of the Code of Criminal Procedure, Samvat 1989, relating to search and seizure shall apply, as far as may be, to searches and seizure under the Act."]

38A.

[Theft of electric lines and material.

[Section 38-A inserted by Act VI of 2005 Section 4, w.e.f. 17-1-2005.]

(1)

Whoever dishonesty,-

(a)

cuts or removes or takes away or transfers any electric line, material or meter from a tower, pole, any other installation or place of installation or any other place, or site where it may be rightfully or lawfully stored, deposited, kept stocked, situated or located, including during transportation, without the consent of the licensee or the owner, as the case may be, whether or not the Act is done for profit or gain;

(b)

stores, possesses or otherwise keeps in this premises, custody or control, any electric line, material or matter without the consent of the owner, whether or not the Act is committed for profit or gain ; or

(c)

loads, carries, or moves from one place to another any electric line, material or meter without the consent of its owner, whether or not the Act is done for profit or gain is said to have committed an offence of theft of electric lines and material and shall be punishable with imprisonment for a term which may extend to three years or with fine which shall not be less than five thousand rupees or with both.

(2)

If a person, having been convicted of an offence punishable under sub-section (1), is again guilty of an offence punishable under that sub-section, he shall be punishable for the second or subsequent offence for a term of imprisonment which shall not be less than six months but which may extend to two years and shall also be liable to fine which shall not be less than ten thousand rupees.]

["38AA Offences to be cognizable.

[Renumbered by Act VI of 2005, Section 4. w.e.f 17-1-2005 for earlier amendment see Act IV of 1988, Section 3.]

- Notwithstanding anything contained in any other law for the time being in force, the offences, under sections 38, 38-A and 38-AA of the Act shall be cognizable offences.]

["38AAA Offence to be cognizable.

[Section 38-AAA inserted Act VI of 2005, Section 4, (Section 6).]

- Notwithstanding anything contained in any other law for the time being in force, the offences, under sections 38, 38-A and 38-AA of the Act shall be cognizable offences.]

39.

Penalty for maliciously wasting energy or injuring works.

- Whoever maliciously causes energy to be wasted or diverted or, with intent to cut off the supply of energy, cuts or injures or attempts to cut or injure, any electric supply-line or works, shall be punishable with imprisonment may extend to one thousand rupees, or with both.

40.

Penalty for unauthorised supply of energy by non-licensees.

- Whoever, in contravention of the provisions of section 28, engages in the business of supplying energy, shall be punishable with fine which may extend to three thousand rupees and, in the case of a continuing contravention with a daily fine which may extend to three hundred rupees,

41.

Penalty for illegal or defective supply or for non-compliance with, order.

- Whoever,-

(a)

being a licences, save as permitted under section 27 or section 50 or by his licence, supplies energy or lays down or places my electric supply-line or works outside the area of supply ;or

(b)

being a license, in contravention of the provisions of this Actor of the rules thereunder or in breach of the conditions of his licence and without reasonable excuse, the burden of proving which shall be lie on him, discontinues the supply of energy or fails to supply energy; or

(c)

makes default in complying with any order issued to him under section 34, sub-section (2);

shall be punishable with fine which may extend to one thousand rupees, and, in the case of a continuing offence or default, with a daily fine which may extend to one hundred rupees.

42.

Penalty for illegal transmission or use of energy.

- Whoever, in contravention of the provisions of section 30, transmits or uses energy without giving the notice required thereby, shall be punishable with fine which may extend to five hundred rupees, and, in the case of a continuing offence, with a daily fine which may extend to fifty rupees.

43.

Penalty for interference with meters or licensee's works and for improper use of energy.

- Whoever.-

(a)

connects any meter referred to in section 26, sub-section (1), or any meter, indicator or apparatus referred to in section 26, sub-section (7), with any electric supply-line through which energy is supplied by a licensee, or disconnects the same from any such electric supply-line, without giving to the licensee forty-eight hours notice in writing of his intention ; or

(aa)

[un-authorisedly re-connects any meter referred to in sub-section (1) of section 26 or my meter, indicator or apparatus in sub-section (7) of section 26 with any electric supply-line or other works, being the property of the licensee, through which energy may be supplied when the said electric supply-line or other works has or have been cut or disconnected under sub-section (1) of section 24; or]

[Clause (aa) inserted by Act IV of 1988, Section 4.]

(b)

lays, or causes to be laid, or connects up any works for the purpose of communicating with any other works belonging to a licensee, without such licensee's consent; or

(c)

maliciously injures any meter referred to in section 26, sub-section (1); or any meter, indicator or apparatus referred to in section 26, sub-section (7) or wilfully or fraudulently alters the index of any such meter, indicator or apparatus, or prevents any such meter, indicator or apparatus from duly registering; or

(d)

improperly uses the energy of a licensee;

[shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to [ten thousand rupees,]

[Substituted by Act IV of 1988.]

or with both,] and, in the case of a continuing offence, with a daily fine which may extend to [five hundred rupees;]

[Substituted by Act VI of 2005, Section 7, w.e.f 17-01-2005.]

and if it is proved that any artificial means exist for making [or such re-connection as is referred to in clause (aa),]

[Substituted by Act VI of 2005.]

or such communication as is referred to in clause (b), or causing such alteration or prevention as is referred to in clause (c), or for facilitating such improper use as is referred to in clause (d), and that the meter, indicator or apparatus is under the custody or control of the consumer, whether it is his property or not, it shall be presumed, until the contrary is proved, [that such connection, reconnection, communication, alteration, prevention or improper use,]

[Substituted Act VI of 2005.]

as the case may be, has been knowingly and wilfully caused by such consumer.

44.

penalty for extinguishing public lamps.

- Whoever maliciously extinguishes any public lamp shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to three hundred rupees, or with both.

45.

Penalty for negligently wasting energy or injuring works.

- Whoever negligently cause energy to be wasted or diverted or negligently breaks, through down or damages any electric supply line, post, pole or lamp or other apparatus connected with supply of energy [shall in addition to the recovery of the cost of damage, be punishable with fine which may extend to rupees one thousand.]

[Substituted by Act VI of 2005, Sections 8-9, w.e.f. 17-01-2005.]

46.

Penalty for offences not otherwise provided for.

- Whoever, in any case not already provided for by [section 38, section 38-A or section 39]

[Substituted by Act IV of 1988, Sections 5, 6.]

to 45 (both inclusive), makes default in complying with any of the provisions of this Act, or with any order issued under it, in the case of a licensee, with any of the conditions of his licence, shall be punishable with fine which may extend to [five hundred rupees]

[Substituted by Act VI of 2005, Section 8, 9, w.e.f. 17.01.2005.]

: and, in the case of a continuing default, with a daily fine which may extend to [one hundred rupees]

[Substituted by Act VI of 2005, Section 8, 9, w.e.f. 17.01.2005.]

:

Provided that, where a person has made default in complying with any of the provisions of section 12, 13, 14, 16, and 32 as the case may be, he shall not so punishable if the Court is opinion that the case was one of emergency and that the offender complied with the said provisions as far as was reasonable in the circumstances.

47.

Penalties not to affect other liabilities.

- The penalties imposed by [section 38, section 38-A or section 39 to 46]

[Substituted by Act IV of 1988, Sections 5, 6.]

(both inclusive) shall be in addition to, and not in derogation of, any liability in respect of the payment of compensation or, in the case of licensee, the revocation of his licence, which the offender may have incurred.

48.

Penalties where works belong to Government.

- The provisions of [section 38, 38-A, 39,]

[Substituted by Act IV of 1988, Section 5 & 6.]

43, 44 and 45 shall, so far as they are applicable, be deemed to apply also when the Acts made punishable thereunder are committed in the case of energy supplied by, or of works belonging to, the Government.

49.

Institution of prosecutions.

- No prosecution shall be instituted against any person for any offence against this Act or any rule, licence or order thereunder, except at the instance of the Government [or a State Electricity Board]

[Inserted by Act IV of 1988, Section 7.]

or an Electric Inspector, or of a person aggrieved by the same.

Supplementary

50.

Exercise in certain cases of powers of telegraph authority.

- Notwithstanding anything in sections 11 to 15 (both inclusive) and section 17 and 18, the Government may, by order in writing [for the placing of any wires, poles, wall brackets, apparatus and appliances for the transmission and distribution of energy,]

[Substituted by Act XI, VIII of Svt. 2011 'for placing of appliances and apparatus for transmission of energy'.]

confer any public officer or licensee, subject to such conditions and restrictions (if any) as the Government may think fit to impose, [all or any of the powers which the telegraph authority possesses under Part III of the Indian Telegraph Act, 1885 (13 of 1885)]

[Substituted by Act XI, VIII of Svt. 2011 for certain words.]

with respect to the placing of telegraph lines and posts for the purposes of a telegraph established or maintained [x x x]

[Words 'by the Government' deleted by Act XI, VIII of Svt. 2011.]

or to be so established or maintained.

51.

Arbitration.

- Where any matter, is by or under this act, directed to be determined by arbitration the matter shall, unless it is otherwise expressly provided in the licence, be determined by such person or persons as the Government may nominate in that behalf on the application of either party.

52.

Service of notices, order or documents.

(1)

Every notice, order or document by or under this act required or authorised to be addressed to any person may be served by post or left.

(a)

Where the Government is the addressee, at the office of such officer as the Government may designate in this behalf;

(b)

where a local authority is the addressee, at the office of the local authority;

(c)

where a company is the addressee, at the registered office of the company or, in the event of the registered office of the company not being in Jammu and Kashmir, at any office of the company in Jammu and Kashmir;

(d)

where any other person is the addressee, at the usual or last known place of abode or business of the person.

(2)

Every notice, order or document by or under this Act required or authorised to be addressed to the owner or occupier of any premises shall be deemed to be properly addressed if addressed by the description of the "owner" or "occupier" of the premises (naming the premises), and may be served by delivering it, or a true copy thereof, to some person on the premises; or, if there is no person on the premises to whom the same can with reasonable diligence be delivered, by affixing it on some conspicuous part of the premises.

53.

[Recovery of sums recoverable under certain provisions of the Act.

[Section 53 substituted by Act XLVIII of Svt. 2011.]

(1)

On failure of any person to pay sum due from him in respect of the supply of electrical energy, any sum declared, to be recoverable and every fee leviable under this Act on the specified date, the Electrical Engineer or any other officer authorised in this behalf by the Electric Department shall cause a writ of deemed to be served on the defaulter or delivered at or affixed to his place of residence and addressed by post to such place of residence or any place where he may be known to reside. A process charge of [rupees ten] per writ of demand issued in addition to any postal charges incurred under this section may be added to the arrear claimed as such.

(2)

Arrears of any dues on account of the supply of electrical energy or of any sums declared to be recoverable or of any fees leviable under this Act may be recovered on expiry of 15 days from the date specified for payment in the writ of demand issued under sub-section (1) on application to a Magistrate having jurisdiction where the person liable to pay the same is for the time being resident by the attachment and sale of any movable property belonging to such defaulter and within the limits of such Magistrate's jurisdiction. Such attachment and sale shall be made in the same manner as attachment and sale of [movable or immovable property]

[Substituted for 'movable property' by Act VII of 2005, Section 10, w.e.f. 17-1-2005.]

in execution of a decree of a Civil Court:

Provided that, if any person disputes his liability to pay the arrears of electrical energy charges or fees or disputes the correctness of the amount demanded, he may pay the amount demanded from him under protest in writing and may bring a suit in the Civil Court to contest his liability and for refund of the amount not from him.]

54.

Delegation of certain functions of Government to Electric Inspectors.

- The Government may, by general or special order, authorise the discharge of any of its functions under section 12 or section 17 or section 34, sub-section (2), or clause V, sub-section (2), or clause XII of the Schedule by an Electric Inspector.

55.

Protection for acts done in good faith.

- No suit, prosecution or other proceeding shall lie against any public office, or any servant of a local authority, for anything done or in good faith purporting to be done, under this Act.

55A.

[Constitution of Special Courts.

[Sections 55A to D Inserted by Act VII of 2005, Section 11.]

(1)

The Government in consultation with the High Court of Jammu and Kashmir may, for purpose of providing speedy trial offences under the Act constitute, by notification in the Government gazette, as many Special Courts as may be necessary for such area or areas, as may be specified in the notification.

(2)

Where the office of the Judge of a Special Court is vacant, or such Judge is absent from the ordinary place of sitting of such Special Court or where no Special Court has been constituted under the Act, the functions of the Special court shall be disposed of by the Chief Judicial Magistrate having territorial jurisdiction in the area or such other Judicial Magistrate as the Government may, in consultation with the High Court, appoint.

(3)

Notwithstanding anything contained in the code of Criminal Procedure, Samvat 1989 and subject to provisions of this Act, every offence punishable under the Act shall, subject to the provisions of sub-section (4), be triable by the Special Court within whose jurisdiction such offence has been committed.

(4)

where it appears to any Court, in the course of any inquiry of trial, that an offence punishable under section 38, 38-A and 38-AA in respect of any offence that the case is one which is triable by a Special Court constituted under the Act for the area in which such case has arisen, it shall transfer such case to such Special Court wherever constituted for the area

and, thereupon, such case shall be tried disposed of in accordance with the provisions of the Act:

Provided that if such Special Court is of opinion that further examination, cross examination of any of the witness whose evidence has already been recorded, is required in the interest of justice, it may resubmit any such witness and after such further examination, cross-examination, re-examination if any, as it may permit, the witness shall be discharged.

55B.

Summary trial.

(1)

Notwithstanding contained in sub-section (1) of section 260 or section 262 of the Code of Criminal Procedure, Samvat 1989, the offences referred to in sections 38, 38-A and 38-AA may be tried in a summary way in accordance with the procedure prescribed in the said Code and the provisions of section 263 to 265 of the said Code shall, so far as may be, apply to such trial:

Provided that where in the course of a summary trial under this sections, it appears to the Court that it is undesirable to try such case in summary way, the Court shall recall any witness who may have been examined and proceed to re-hear the case in the manner provided by the provisions of the said Code for the trial of such offence:

Provided further that in the case of any conviction in a summary trial under this section, it shall be lawful for a Court to pass a sentence of imprisonment for a term exceeding two years.

(2)

A Special Court may, while trying an offence under the Act and with a view to obtaining the evidence of any person supposed to have been directly or indirectly concerned in or privy to any offence, tender pardon to such person on condition of his making a full and true disclosure of the circumstances within his knowledge relating to the offence and to every other person concerned whether as principal or abettor in the commission thereof, and any pardon so tendered shall for the purpose of section 308 of the Code of Criminal procedure, Samvat 1989, be deemed to have been tendered under section 307 thereof.

(3)

The Special Court may determine the civil liability against a consumer or a person in terms of money for theft of energy which shall not be such consumer or a person of twelve months proceeding the date of detection of theft of energy or the exact period of theft if determined, whichever as if and the amount of civil liability so determined shall be recovered as if it were a decree of court.

(4)

In case the civil liability so determined finally by the Special Court is less than the amount deposited by the consumer or the person, the excess amount so deposited by the consumer or the person, to licensee or the concerned person as the case may be, shall be returned within a fortnight from the date of communication of the order of the Special Court together with interest at the prevailing Reserve Bank of India Prime lending rate for the period from the date of such deposit till the date of payment.

Explanation. - For purpose of this section, "civil liability" means loss of damage incurred by the licensee or the concerned person, as the case may be, due to the commission of an offence referred to in section 38 and 38-A.

55C.

Applicability of the Code.

- Save as otherwise provided in the act, the provisions of the Code of Criminal, Samvat 1989 in so far, as they are not inconsistent with the provisions of the Act, shall apply to the proceedings under the Act.

55D.

Review.

- The Special Court may, on a petition or otherwise and in order to prevent miscarriage of justice, review its judgement or order but no such review petition shall be entertained except on the ground that such order was passed under a mistake of a fact, ignorance of any material fact or any error apparent on the face of the record :

Provided that Special Court shall not allow any review petition and set as its previous order or judgement without hearing the parties affected.

Explanation. - For purposes of this part, "Special Court" means the Special Courts constituted under sub-section (1) of section 55-A and includes the Court of Chief Judicial Magistrate or any other Court exercising the powers of a Special Court under the Act.]

56.

Repeal and savings.

- The Jammu and Kashmir electricity Act, 1991, is hereby repealed :

Provided that the rules sanctioned and the orders passed under the said act shall be deemed to have been sanctioned and passed under this Act and shall remain in force until repealed or modified expressly or by implication by competent authority.

The Schedule

Provisions to be Deemed to be Incorporated with and to form Part of, Every Licence Granted under Part II, So far as not added to, Varied or Excepted by The Licence.

[See section 3, sub-section (2), clause (e)]Security and accounts

I. Security for execution of works of licensee being local authority. - Where the licensee is not a local authority, the following provisions as to giving security shall apply, namely :-

(a)

The licensee shall, within the period fixed in that behalf by his licensee, or any longer period which the Government may substitute therefor by order under section 4, sub-section (3), clause (b) of the Jammu and Kashmir electricity Act, 1977 before exercising any of the powers by the licence conferred on him in relation to the execution of works, show, to the satisfaction of the Government, that he is in a position fully and efficiently to discharge the duties and obligations imposed upon him by the licence, throughout the area of supply.

(b)

The licensee shall also, within the period fixed in that behalf by his licence, or any longer period which the Government may, substitute therefor by order under section 4, sub-section (3), clause (b) of the Jammu and Kashmir Electricity Act, and before exercising any of the powers conferred on him in relation to the execution of the works, deposit or secure to the satisfaction of the Government such sum (if any) as may be fixed by the licence or, if not so fixed, by the Government.

(c)

The said sum deposited by the licensee under the provision of this clause shall be repaid or released to him on the completion of the works or at such earlier date or dates and by such instalments as may be approved by the Government.

II. Audit of accounts of licensee not using authority. - Where the licensee is not a local authority, the following provisions as to the audit of accounts shall apply, namely :-

(a)

The annual statement of accounts of the undertaking shall, before being rendered under section 10 of the Jammu and Kashmir Electricity Act, be examined and audited by such person as the Government may appoint or approve in this behalf, and the remuneration of the auditor shall be such as the Government may direct, and his remuneration and all expenses incurred by him in or the about execution of his duties, to such an amount as the Government shall approve, shall be paid by the licensee on deemed.

(b)

The licensee shall afford to the auditor, his clerk and assistants, access to all such books and documents relating to the undertaking as are necessary for the purposes of the audit, and shall, when required, furnish to him and them all vouchers and information requisite for that purpose and afford to him and them all facilities for the proper execution of his and their duty.

(c)

The audit shall be made and conducted in such manner as the Government may direct.

(d)

Any report made by the auditor, or such portion thereof as the Government may direct, shall be appended to the annual statement of accounts of the licensee, and shall thenceforth form part thereof.

(e)

notwithstanding the foregoing provisions of this clause, the Government may, if it thinks fit, accept the examination and audit of an auditor appointed by the licensee.

III. Separate accounts. - The licence shall, unless the Government otherwise directs, at all times keep the accounts of the capital employed for the purposes of the undertaking distinct from the accounts kept by him of any other undertaking or business.

Compulsory works and supply

IV. Execution of works after commencement of licence. - The licensee shall, within a period of three years after the commencement of the licence, execute to the satisfaction of the Government all such works as may be specified in the licence in this behalf or, if not so specified, as the Government may, by order in writing issued within six months of the date of the commencement of the licence, direct.

V. Provisions as to laying down of further distributing main. - (1) Where, after the expiration of two years and six months from the commencement of the licence, a requisition is made by six or more owners or occupiers of premises in or upon any street or part of a street within the area of supply or by the Government or a local authority charged with the public lighting thereof, requiring the licensee to provide distributing mains throughout such street or part thereof, the licensee shall comply within six months with the requisition, less,-

(a)

where it is made by such owners or occupiers as aforesaid, the owners occupiers making it do not, within fourteen clear days after the service on them by the licensee of a notice in writing in this behalf, tender to the licensee a written contract duly executed and with sufficient security binding themselves to take, or guaranteeing that there shall be taken, a supply of energy for not less than two years to such amount as will in the aggregate produce annually, at the current rates charged by the licensee, a reasonable return to the licensee; or

(b)

where it is made by the Government or a local authority, the Government or local authority, as the case may be, does not, within the like period, tender a like contract binding itself to take a supply of energy, for not less then seven years for the public lamps in such street or part thereof;

(2)

Where any difference or dispute arises between the licensee and such owners or occupiers as the sufficiency of the security offered under this clause, or as to the amount of energy to be taken or guaranteed as aforesaid, the matter shall be referred to the Government and either decided by it or, if it so directs, determined By arbitration.

(3)

Every requisition under this clause shall be signed by the maker or makers thereof and shall be served on the licensee.

(4)

Every requisition under this clause shall be in a form to be prescribed by rules under the Jammu and Kashmir Electricity Act; and copies of the form shall be kept at the office of the licensee and supplied free of charge to any applicant.

VI. Requisition for supply to owners or occupiers. - (1) Where after distributing main have been laid down under the provisions of clause IV or clause V and the supply of energy through those mains or any of them has commenced, a requisition is made by the owner or occupier of any premises situate within the area of supply requiring the licensee to supply energy for such premises, the licensee shall, within one month from the the making of the requisition, or within such longer period as the Electric Inspector may allow, supply, and, save in so far as he is prevented from doing so by cyclones, floods, storms or other occurrents beyond his control continue to supply energy in accordance with the requisition :

provided, first, that the licensee shall not be bound to comply with any such requisition unless and until the person making it,-

(a)

within fourteen days after the service on him by the licensee of a notice in writing in this behalf, tenders to the licensee a written contract, in a form approved by the Government, duly executed and with sufficient security, binding himself to take a supply of energy for not less than two years to such amount as will produce, at current rates charged by the licensee, a reasonable return to the licensee ; and

(b)

if required by the licensee so to do, pays to the licensee the cost of so much of any service line as may be laid down or placed for the purposes of the supply upon the property in respect of which the requisition is made, and of so much of any service-line as it may be necessary for the said purposes to lay down or place beyond one hundred feet from the licensee's distributing main, although not on that property :

Provided, secondly, that the licensee shall be entitled to discontinue such supply,-

(a)

if the owner or occupier of the property to which the supply is made has not already given security, or if any security

given by him has become invalid or insufficient, and such owner or occupier fails furnish security or to make up the original security to a sufficient amount, as the case may be, within seven days, after the service upon him of notice from the licensee requiring him so to do; or

(b)

if the owner or occupier of the property to which the supply is made adopts any appliance, or uses the energy supplied to him by the licensee for any purposes, or deals with it in any manner, so as unduly or improperly to interfere with the efficient supply of energy to any other person by the licensee; or

(c)

if the electric wires, fittings, works and apparatus in such property are not in good order and condition, and are consequently likely to effect injuriously the use of energy by the licensee, or by other person; or

(d)

if the owner or occupier makes any alterations of, additions to, any electric wires, fittings, works or apparatus within such property as aforesaid, and does not notify the same to the licensee before the same are connected to the source of supply, with a view to their being examined and tested, but the licensee shall reconnect the supply, with all reasonable speed on the cessation of the act or default or both, as the case may be, which entitled him to discontinue it:

Provided, thirdly, that the maximum rate per unit of time at which the owner or occupier shall be entitled to be supplied with energy shall not exceed what is necessary for the maximum consumption on his premises, and where the owner or occupier has required a licensee to supply him at a specified maximum rate, he shall not be entitled to alter that maximum, except after one month's notice in writing to the licensee, and the licensee may recover from the owner or occupier any expenses incurred by him by reason of such alteration in respect of the service-lines by which energy is supplied to the property beyond one hundred feet from the licensee's distributing main, or in respect of any fittings or apparatus of the licensee upon that property; and

Provided, fourthly, that if any requisition is made for a supply of energy and the licensee can prove, to the satisfaction of an Electric Inspector,-

(a)

that the nearest distributing main is already loaded up to its current carrying capacity ; or

(b)

that, in case of larger amount of current being transmitted by it the loss of pressure will seriously affect the efficiency of the supply to other consumers in the vicinity,

the licensee may refuse to accede to the requisition for such reasonable period, not exceeding six months, as such Inspector may think sufficient for the purpose to amending the distributing main or laying down or placing a further distributing main.

(2)

Any service-line laid for the purpose of supply in pursuance of a requisition under sub-clause (1) shall, notwithstanding that a portion of it may have been paid for by the person making the requisition, be maintained by the licensee.

(3)

Where any difference or dispute arises as to the amount of energy to be taken or guaranteed as aforesaid, or as to the cost of any service-line or as to the sufficiency of the security offered by any owner or occupier, or as to the improper use of energy, or as to any alleged defect in any wires, fittings, works or apparatus, or as to the amount of the expenses incurred under the third proviso to sub-clause (1), the matter shall be referred to the Electric Inspector and decided by him.

(4)

Every requisition under this clause shall be signed by the maker or makers thereof and shall be served on the licensee.

(5)

Every requisition under this clause shall be in a form to be prescribed by rules under the Jammu and Kashmir Electricity Act; and copies of the form shall be kept at the office of the licensee and supplied free of charge to any applicant.

VII. Further provisions as to laying service-line. - The licensee shall, before commencing to lay down or place a service-line in any street in which a distributing main has not already been laid down or placed, serve upon the local authority (if any) and upon the owner or occupier of all premises abutting on so much of the streets as lies between the points of origin and termination of the service-line so to be laid or placed, twenty-one day's notice stating that the licensee intends to lay down or place a service-line, and intimating that, if within the said period the local authority or any

five or more of such owners or occupiers require, in accordance with the provisions of the licensee, that a supply shall be given for any public lamps or to the their premises, as the case may be, the necessary distributing main will be laid down or placed by the licensee at the same time as the service-line.

VIII. Supply for public lamps. - (1) Where, after distributing mains have been laid down under the provisions of clause IV or clause and the supply of energy through those mains or any of them has commenced, a requisition is made by the Government or by local authority requiring the licensee to supply for a period of not less than seven years energy for any public lamps within the area of supply, the licensee shall supply, and, save in so far as he is prevented from doing so by cyclones, floods, storms or other occurrences beyond his control, continue to supply, energy for such lamps in such quantities as the Government or the local authority as the case may be may require.

(2)

The provisions of sub-clause (b) of the first proviso, of sub-clause (c) and (d) of the second proviso, and of the third and fourth provisos to sub-clause (1) and the provisions of sub-clause (2) and (3) of clause VI shall, so far as may be, apply to every case in which a requisition for the supply of energy is made under this clause as if the Government or local authority were an owner or occupier within the meaning of those provisions.

Charges

IX. Methods of charging. - (1) where the licensee charges by any method approved by the Government in accordance with section 23, sub-section (3), clause (c) of the Jammu and Kashmir Electricity Act, any consumer who objects to that method may, by not less than one month's notice in writing, require the licensee to charge him at the licensee's option, either by the actual amount of energy supplied to him or by the electrical quantity contained in the supply, and thereafter the licensee shall not, except with the consent of the consumer, charge him by another method.

(2)

Before commencing to supply energy through any distributing main, the licensee shall give notice, by public advertisement, of the method by which he proposes to charge for energy so supplied; and, where the licensee has given such notice, he shall not be entitled to change that method of charging without giving not less than one month's notice in writing of such charge to the Government, to the local authority (if any) concerned, and to every consumer of energy who is supplied by him from such distributing main.

(3)

If the consumer is provided with a meter in pursuance of the provisions of section 26, sub-section (1), of the Jammu and Kashmir Electricity Act, and the licensee changes the method of charging for the energy supplied by him from the distributing main, the licensee shall bear the expense of providing a new method or such other apparatus as may be necessary by reason of new method of charging.

X. Minimum charges. - A licensee may charge a consumer a minimum charge for energy of such amount and determined in such manner as may be specified by his licence, and such minimum charge shall be payable notwithstanding that no energy has been used by the consumer during the period of which such minimum charge is made.

XI. Charge for supply for public lamps. - The price to be charged by the licensee and so to be paid to him for energy supplied for the public lamps, and the mode in which those charges are to be ascertained, shall be settled by agreement between the licensee and the Government or the local authority, as the case may be, and, where any difference or dispute arises, the matter shall be determined by arbitration.

Testing and Inspection

XII. Licensee to establish testing stations and keep instruments for testing. - The licensee shall establish at his own cost and keep in proper conditions such number of testing stations, situated at such places within reasonable distance from any distributing main, as the Government may direct for the purpose of testing the pressure or periodicity of the supply of energy in the distributing main, and shall supply, and keep in proper condition there at, and at all premises from which he supplies energy, such instruments for testing as an Electric Inspector may approve and shall supply energy to testing station for the purpose of testing.

XIII. Facilities for testing. - The licensee shall afford facilities for inspection and testing of his works and for the reading, testing and inspection of his instruments, and may, on each occasion of the testing of his works or the reading, testing or inspey instruments, be represented by an agent, who may be present, but shall not interfere with the reading, testing or inspection.

XIV. Testing of works. - On the occasion of the testing of any works of the licensee by an Electric Inspector reasonable

notice thereof shall be given to the licensee; and the testing shall be carried out at such suitable hours, as, in the opinion of the Electric Inspector, will least interfere with the supply of energy by the licensee, and in such manner as the Electric Inspector may think fit; but, except under the provisions of an order made in each case in that behalf by the Government, the Electric Inspector shall not be entitled to and access to, or interfere with, the works of the licensee at any points other than those at which the licensee himself has access to the same:

Provided that the licensee shall not be held responsible for any interruption or irregularity in the supply of energy which may be occasioned by, or required by the Electric Inspector for the purpose of any such testing as aforesaid :

Provided, also that the test in shall not be made in regard to any particular portion of works oftener than once in any three months, unless in pursuance of an order made in each case in that behalf by the Government.

Plans

XV. Plan of areas of supply to be made and kept open for inspection. - (1) The licensee shall, after commencing to supply energy, forthwith cause a plan to be made of the area of supply, and shall cause to be marked thereon the alignment and in the case of underground works, the approximate depth below the surface of all his then existing electric supply lines, street distributing boxes and other works, and shall once in every year cause that plan to be duly corrected so as to show the electric supply lines, street distributing boxes and other works for the time being in position. The licensee shall also, if so required by an Electric Inspector, cause to be made sections showing the approximate level of all his existing underground works other than service-lines.

(2)

Every such plan shall be drawn to such a scale as the Government may require; provided that no scale shall be required unless maps of the locality on that scale are for the time being available to the public.

(3)

Every such section shall be drawn to horizontal and vertical scales which shall be such as the Government may require.

(4)

every plan and section so made or corrected, or a copy thereof, marked with the date when it was so made or corrected, shall be kept by the licensee at his principal office or place of business within the area of supply, and shall at all reasonable times be open to the inspection and conditions applicants, and copies thereof shall be supplied on such terms and conditions as may be prescribed by rules under the Jammu and Kashmir Electricity Act, 1997.

(5)

The licensee shall, if required by an electric Inspector supply free of charge to such Electric Inspector a Copy of every such plan or section duly corrected so as to agree with the original kept at the principal officer or place of business of the licensee.

Additional Notice of certain works

XVI. Notice to Electric Inspector. - On the day next preceding the commencement of any such works as are referred to in section 12 of the Jammu and Kashmir electricity act, 1997, the licensee shall, in addition to any other notices which he may be required to give, serve upon the electric Inspector, or such officer as the Government may appoint in this behalf for the area of supply, a notice in writing stating that he is about to commence the works, and the nature and position of the same.

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